

SENATE FLOOR VERSION

February 11, 2025

SENATE BILL NO. 752

By: Stewart

An Act relating to county purchasing; amending 19 O.S. 2021, Section 1500.1, which relates to the authority of county purchasing agents; authorizing county purchasing agents to establish online bidding process with certain vendors; updating statutory language; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 1500.1, is amended to read as follows:

Section 1500.1. A. Except as otherwise provided by Section 1500 et seq. of this title, the county purchasing agent shall have the authority to develop, implement, and promote policies and procedures that allow the procurement of materials and equipment through contracts that are flexible, value based and are in the best interests of the state and its political subdivisions.

B. Except as otherwise provided, the county purchasing agent shall have the authority to use electronic commerce for the solicitation, notification, and other purchasing processes. For purposes of this subsection, "electronic commerce" means the use of

1 electronic methods to enable solicitations, open bids, supplier
2 response, bid submission, notice of contract award, county
3 acquisition processes, or any other function to make an acquisition.

4 C. The boards of county commissioners shall have the authority
5 to conduct a procurement transaction by electronic means subject to
6 the provisions of the Uniform Electronic Transactions Act.

7 D. The board of county commissioners shall have the authority
8 to establish an online bidding process with a vendor ~~authorized by~~
9 ~~state contract as provided by the Office of Management and~~
10 ~~Enterprise Services.~~

11 1. The purchasing agent shall comply with all bid notice
12 requirements as prescribed in paragraph 2 of subsection B of Section
13 1505 of this title or the Public Competitive Bidding Act of 1974.

14 2. Solicitations shall designate an opening and closing date
15 and time for bids. Sealed bids received pursuant to this subsection
16 shall be first opened in an open meeting of the board of county
17 commissioners concurrently with other sealed bids received as
18 provided in Section 1505 of this title or the Public Competitive
19 Bidding Act of 1974.

20 3. The board of county commissioners shall be authorized to
21 require online bidders to register before the opening date and time
22 and, as part of that registration, require bidders to agree to any
23 terms, conditions, or other requirements of the solicitation or
24 applicable acts.

1 4. The board of county commissioners shall be authorized to
2 require potential online bidders to prequalify as bidders.
3 Solicitations and published bid notices shall indicate the
4 prequalification requirements for online bids. Bids submitted by
5 online bidders not meeting a prequalification requirement shall be
6 disqualified from consideration.

7 SECTION 2. This act shall become effective July 1, 2025.

8 SECTION 3. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
13 February 11, 2025 - DO PASS
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